The Making of the Indian Constitution

Introduction to the Indian Constitution

The Constitution of India is the supreme law of the country. It lays down the structure of the government, the powers and duties of its institutions, the rights and duties of citizens and the guiding principles for governing the nation. It is the longest written constitution of any sovereign country in the world. It established India as a sovereign, socialist, secular, democratic republic and secures justice, liberty, equality and fraternity to all citizens. The Constitution was prepared by the Constituent Assembly, which took about two years, eleven months and eighteen days to complete its task.

Background and the Constituent Assembly

The idea of an Indian-made constitution was first put forward by M. N. Roy in 1934, and the Indian National Congress demanded a Constituent Assembly in 1935. Under the Cabinet Mission Plan of 1946, elections were held to select members of the Constituent Assembly, mostly by the provincial legislative assemblies. The Assembly held its first meeting on 9 December 1946 in the Constitution Hall (now the Central Hall of Parliament) in New Delhi, with Dr. Sachchidananda Sinha as temporary president. On 11 December 1946 Dr. Rajendra Prasad was elected its permanent president. The Assembly had about 299 members after the Partition, including 15 women such as Sarojini Naidu, Hansa Mehta, Durgabai Deshmukh of Madras and Dakshayani Velayudhan, and it included people from all regions, castes, religions and professions. The Objectives Resolution, moved by Jawaharlal Nehru on 13 December 1946 and adopted on 22 January 1947, became the basis of the Preamble. B. N. Rau served as constitutional adviser.

Who Chaired the Drafting Committee?

The Drafting Committee was chaired by Dr. B. R. Ambedkar, who is therefore called the Chief Architect or Father of the Indian Constitution. The Committee was appointed on 29 August 1947 and had seven members: Dr. B. R. Ambedkar (chairman), N. Gopalaswami Ayyangar, Alladi Krishnaswami Ayyar, K. M. Munshi, Syed Mohammad Saadulla, B. L. Mitter (later replaced by N. Madhava Rao) and D. P. Khaitan (who died in 1948 and was replaced by T. T. Krishnamachari). Three of the members, Gopalaswami Ayyangar, Alladi Krishnaswami Ayyar and T. T. Krishnamachari, came from the Madras region. The Committee prepared the draft Constitution, which was published in February 1948 for public discussion. The Assembly met in 11 sessions and spent 114 days debating the draft clause by clause. On 4 November 1948 Dr. Ambedkar introduced the draft.

Adoption and Commencement

The Constituent Assembly adopted the Constitution on 26 November 1949, and this date is celebrated as Constitution Day or Samvidhan Divas since 2015. Some provisions on citizenship and elections came into effect immediately. The Constitution came into force on 26 January 1950, which is celebrated as Republic Day. This date was chosen because on 26 January 1930 the Indian National Congress had declared Purna Swaraj (complete independence). On the day it came into force, the Government of India Act of 1935 was replaced, and India became a republic, with Dr. Rajendra Prasad as the first President. The members of the Assembly signed the original document on 24 January 1950. The original Constitution was handwritten and calligraphed in English and Hindi by Prem Behari Narain Raizada, and its pages were beautifully decorated by artists from Santiniketan led by Nandalal Bose and Beohar Rammanohar Sinha. The original copies are kept in the Library of Parliament in helium-filled cases.

Size and Features

The original Constitution had 395 Articles in 22 Parts and 8 Schedules; today it has about 448 articles, 25 parts and 12 schedules after many amendments. Its main features include a federal system with a strong centre, a parliamentary form of government, an independent judiciary, universal adult franchise, Fundamental Rights, Directive Principles of State Policy, Fundamental Duties and the secular character of the state. It borrows ideas from many sources: the parliamentary system from Britain, Fundamental Rights from the United States, Directive Principles from Ireland, the federal scheme from Canada, the concurrent list from Australia, and emergency provisions from Germany. The Preamble begins with "We, the People of India". The words "socialist" and "secular" were added to the Preamble by the 42nd Amendment of 1976. Article 368 allows the Parliament to amend the Constitution, but in the Kesavananda Bharati case of 1973 the Supreme Court held that the "basic structure" of the Constitution cannot be changed.

How Many Fundamental Rights Are There?

There are six Fundamental Rights in the Indian Constitution, contained in Part III (Articles 12 to 35). They are the Right to Equality (Articles 14 to 18), the Right to Freedom (Articles 19 to 22), the Right against Exploitation (Articles 23 and 24), the Right to Freedom of Religion (Articles 25 to 28), Cultural and Educational Rights (Articles 29 and 30) and the Right to Constitutional Remedies (Article 32). Originally there were seven, but the Right to Property was removed from the list of Fundamental Rights by the 44th Amendment in 1978 and made a legal right under Article 300A. Dr. Ambedkar called the Right to Constitutional Remedies the "heart and soul" of the Constitution, because it lets citizens approach the Supreme Court directly if their rights are violated. Fundamental Duties, now eleven in number, were added in 1976 by the 42nd Amendment under Article 51A, and the 11th, on providing education to children aged 6 to 14, was added in 2002.

Amendments and Living Document

The Constitution is a living document, and it has been amended more than 100 times. The 73rd and 74th Amendments in 1992 gave constitutional status to panchayats and municipalities, the 86th Amendment in 2002 made education a fundamental right for children aged 6 to 14 (Article 21A), and the 101st Amendment in 2016 introduced GST. The Constitution is the foundation for institutions such as the Supreme Court, the Election Commission and the Comptroller and Auditor General.

Challenges and Future

Debates continue over issues such as federalism, judicial independence, and the balance between rights and duties. Dr. Ambedkar warned in his last speech that a constitution works only as well as the people who implement it.

Quick Facts

- Dr. B. R. Ambedkar chaired the Drafting Committee, appointed on 29 August 1947.
- The Constitution was adopted on 26 November 1949 and came into force on 26 January 1950.
- There are six Fundamental Rights in the Constitution.
- The Constituent Assembly's first meeting was on 9 December 1946, with Dr. Rajendra Prasad as its president.
- The original Constitution had 395 articles, 22 parts and 8 schedules.